

23NWCV03995 23NWCV03995

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Case Number: 23NWCV03995 Hearing Date: September 14, 2026 Dept: C

HWANG vs GENERAL MOTORS LLC.

CASE NO.: 23NWCV03995

HEARING: 9/14/26

at 9:30AM

#10

TENTATIVE

RULING

Plaintiff GRACE LEE

HWANG's Motion for Attorney's fees is GRANTED in part. Plaintiff is entitled to recover \$16,700.00 in attorney's fees and \$1,404.62 in costs.

Moving Party to give

NOTICE.

Plaintiff GRACE LEE HWANG (Plaintiff)

moves this Court for an award of attorney's fees pursuant to Civil Code § 1794(d).

Background

This

is a lemon law action. On December 11, 2023, Plaintiff sued defendant GENERAL MOTORS LLC (Defendant) alleging violations of the Song-Beverly Act and Negligent Repair. On October 14, 2025, the parties reached settlement. Per the

998 Offer, Defendant agreed to pay Plaintiff's attorney's fees and costs as determined by the Court pursuant to Civil Code § 1794(d), with Plaintiff the prevailing party.

LEGAL STANDARD

A prevailing party

is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (a)(4), (b).) Attorney's fees are recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court . . . must be served and filed within the time for filing a notice of appeal under . . . rules 8.822 and 8.823 in a limited civil case." (Cal. Rules of Court, rule 3.1702, subd. (b)(1).) In a limited civil case, a notice of appeal must be filed on or before the earliest of 30 days after service of a document entitled "Notice of Entry" of judgment or 90 days after the entry of judgment. (Cal. Rules of Court, rule 8.822, subd. (a)(1).)

The fee

setting inquiry in California begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorney's fee award. The lodestar figure may then be adjusted, based on factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id., at p. 48, fn. 23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-1096.)

Discussion

I.

Attorney's Fees

As

the prevailing party in this action and pursuant to the Song-Beverly Act and the parties' settlement agreement, Plaintiff is entitled to attorney's fees and costs pursuant to CCP § 1032(a)(4) and CCP § 1794(d). However, under the Song-Beverly Act provision that governs award of attorney's fees, if the time expended or the charge for time expended is unreasonable, then the trial court must take that into account and award attorney's fees in a lesser amount. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703.)

Plaintiff's Motion is timely and it is undisputed that Plaintiff is the prevailing party. Plaintiff seeks \$21,200 in attorney's fees and \$1,404.62 in costs pursuant to CCP § 1794(d).

Attorney M. NICHOLAS NITA has provided a declaration setting forth his background and hourly billing rate, as well as an attached exhibit with an itemized description of the time spent and tasks undertaken in relation to this action and the instant motion for attorney's fees and costs. (Nita Decl., ¶¶ 26-34.) According to Nita, his firm spent a total of 51 hours in connection with this action.

Counsel's fees and experience are summarized as follows

Nick Nita

Managing Partner

23 yrs. experience

\$625 / hr

Justin P. Wisnewski

Attorney

3 yrs. Experience

\$400 / hr

Madalina Costescu

Certified Paralegal

15 yrs. experience

\$250 / hr

Jovanna Garay

Certified Paralegal

8 yrs. experience

\$250 / hr

Sophia Aguilar

Certified Paralegal

2 yrs. experience

\$250 / hr

Kaylee Wang

Law Clerk

2 yrs. experience

\$250 / hr

Elena Olsen-Valdez

Settlement Coordinator

1 yr. experience

\$200 / hr

Jennifer Cruz

Legal Assistant

3 yrs. experience

\$200 / hr

Jessica Araiza

Office Manager

\$200 / hr

Jazmine Cruz

Assistant

\$150 / hr

Andrew Kim

Assistant

\$150 / hr

(Nita Decl., Exh. A.)

In opposition, Defendant argues that Plaintiff's motion should be reduced to fees actually and reasonably incurred and supported by the record. (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817-818.) Defendant further argues that the Court should reduce Plaintiff's counsel's billing rate because Plaintiff has failed to demonstrate those hourly rates for lemon law work are reasonable.

A.

Attorney Billing Rate

The Court finds the billing rate for the attorneys at Nita Law Firm are reasonable based on their experience, practice area, and location. (See *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179 [a reasonable hourly rate used for the lodestar calculation of attorney fees is that prevailing in the community for similar work.]) Based on counsel's declarations and the Court's own experience with the billing rates of Los Angeles-area counsel in similar lemon law cases, the Court finds Plaintiff's counsel's and paralegal's rates are reasonable.

B.

Hours Reasonably Spent

The Court may adjust the award for excessive or unreasonable billing. (PLCM *Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-1096.)

. Clerical and Secretarial Work

o Defendant disputes 8.8 hours totaling \$2,144.00 of Plaintiff's entries. Defendant characterizes the billed work as clerical given Plaintiff bills for calendaring, filing or preparing for filing, serving, creating or preparing folders, providing copies and reviewing the file. Defendant does not indicate which specific entries are in dispute citing generally to Nita Decl., Exh. A. (Mot. p. 7: 19-21.)

The Court finds that Plaintiff's counsel billed 4.0 hours in administrative overhead costs that are not billable work for filing, serving, mailing proofs of service, calendaring deadlines, and/ or internal communications. For example:

o 12.6.2023 Mailed the demand letter with supporting documents to General Motors [JC] .1 \$200

o 12.11.2023 Filed Complaint and Judicial Forms and Placed Order for Process of Service of Complaint [JG] .5 \$250

o 2.7.2024 Calendared

Defendant GM's Answer to Complaint [MC] .1 \$250

o 2.7.2024 Calendared

Case Management Conference and court deadlines [MC] .2 \$250

o 3.18.2024 Calendared

discovery propounded on GM [MC] .1 \$250

o 4.2.2024 Emailed copies

of Notice of Case Management Conference and Case Management Statement to client [JG] .1 \$250

o 4.15.2024 Reviewed file

for upcoming CMC; set up the CMC hearing for attorney; prepared file and memo for the CMC hearing; sent email to handling attorney [JG] .5 \$250

o 5.14.2024 Calendared

Discovery to Plaintiff, uploaded discovery to efile [MC] .2 \$250

o 8.1.2024 Calendared

Notice of Deposition of PMQ for Defendant General Motors LLC with Production of Documents [MC] .1 \$250

o 1.21.2025 Printed and

made Discovery Binder with Defendant GM's discovery responses and production of documents [KW] .5 \$250

o 9.8.2025 Calendared

OPC's Expert Deposition [MC] .1 \$250

o 10.13.2025 Filed and

Served Plaintiff's FSC Trial Documents [JG] .2 \$250

o 10.14.2025 Provided

copies of needed documents to counsel to process settlement. [EOV] .1 \$200

o 10.9.2025 Reviewed and

finalized Plaintiff's Motions in Limine No. 1 -11; instructions to paralegals to file and serve [NN] .4 \$625

o 10.9.2025 Filed and

served Plaintiff's Motions in Limine No. 1 – 11 with Proposed Orders, Proof of Service [KW] .5 \$250

o 12.12.2025 Reviewed

file for upcoming OSC; set up the OSC hearing for attorney; prepared file and memo for the OSC hearing; sent email to handling attorney [MC] .3 \$250

The Court agrees that these tasks are

non-compensable as they are administrative/clerical. (See *Save Our Uniquely Rural Community Environment v. County of San Bernardino*, (2015)

235 Cal.App.4th 1179, 1187 [finding that calendaring, internal filing,

preparing proof of service are examples of tasks that have been found to be

purely clerical and excessive]; see also *Collins v. City of Los Angeles*

(2012) 205 Cal.App.4th 140, 159 [characterizing filing and serving documents as

“noncompensable administrative tasks”].) Therefore, the Court shall strike from the

overhead costs 4 hours at \$250/ hour for a total reduction of \$1,000.00.

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Template Pleadings

o Plaintiff's counsel

billed a total of 1.7 hours for a total of \$500 for the drafting and filing of the

Complaint in this action. As Defendant argues, the Complaint is a template

pleading, with minimal changes. (Compare Bowton Decl., Exh. A to Exh. B.)

Therefore, the Court shall reduce the fees by 1.1 hours (0.2 hours at \$625 per hour and 0.9 hours at \$250 per hour) for a total reduction of \$350.

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Template Discovery

o Defendant disputes that

Plaintiff's counsel billed 1.7 hours for a total of \$516 for drafting template

discovery demands. Defendant does not indicate which specific entries are in

dispute. Plaintiff does not dispute the use of templated documents. The Court

notes the changes in the demands are minimal and non-substantive. (Compare

Bowton Decl. ¶ 5, Exh. C to Exh. D; Compare Exh. E to Exh. F.) Although

Plaintiff's counsel correctly delegated the preparation of the templated

discovery to paralegals, the combined time to complete the overall discovery

requests remains excessive; therefore, Court shall reduce the fees by 0.7 hour at the \$250 paralegal rate for a total reduction of \$175.

o Plaintiff's counsel billed

0.5 hours (\$162.00) for preparing Plaintiff's Expert Designation. (Nita Decl. Ex. A, p. 4.) Defendant argues that the time is excessive because Plaintiff's designation is largely identical from case to case. The Court finds the time reasonable given how close this case was to trial. Additionally, the templated work was prepared at the paralegal rate with brief attorney review. Therefore, no reduction shall be made.

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Motions in Limine:

o Defendant

disputes that Plaintiff's Counsel billed 6.4 hours for a total of \$1725.00 to prepare templated motions in limine. (Nita Decl. Exh. A, p. 5; Bowton Decl. ¶ 9, compare Exh. G with Exh. H.) Plaintiff's counsel billed:

§ 10.9.2025

Prepared Motions in Limine No.1 - 11, Proof of service, Proposed Orders [KW]
5.5 \$250

Plaintiff's counsel prepared 11 Motions

in Limine, claiming to spend an average of 30 minutes on each motion. The Court has reviewed Plaintiff's Motions in Limine and finds the time billed to be excessive. The boilerplate motions include identical language in the introductory section and no case specific information in the argument section. If this case had gone to trial, these motions would have been of little assistance to the Court. It is apparent they were filed not for the purpose of advancing the litigation, but instead for the purpose of generating fees. The Court shall strike these fees in their entirety.

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Trial Documents

o Defendant

disputes Plaintiff's counsel having billed 3.0 hours (\$937.00) to "[p]repare[]" trial documents, including statement of the case, witness list, exhibit list, jury instructions, and special verdict forms. (Nita Decl. Ex. A, p. 5.)

Defendant argues that the time entries should be reduced because the “trial documents” do not vary significantly from case to case. (Bowton Decl. ¶ 11.) The Court has reviewed the trial documents and finds the time billed to be reasonable. Additionally, the work was prepared at the paralegal rate with brief attorney review.

§ 10.10.2025 Prepared FSC

and Trial documents: Statement of the Case, Witness List, Exhibit List, List of Jury Instructions, two Special Verdict Forms for Breach of Implied and Express Warranty [JG] 2.5 \$250

§ 10.10.2025 Reviewed and

finalized FSC and trial documents [NN] .5 \$625

Therefore, no reduction shall be made.

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Attorneys Fees Motion:

o Plaintiff's counsel

billed 6.5 hours for the underlying fee motion, not including 3.8 hours in anticipated time for drafting a reply and attending the hearing. (Nita Decl. Exh. A.) Additionally, Plaintiff's counsel billed the following in connection with the motion for attorney's fees and costs:

§ 5.12.2026

Preparing time spent, gathering and organizing receipts/invoices, prepared costs [MC] .5 \$250

§ 5.28.2026

Prepared the Memorandum of Costs -Worksheet and Summary [SA] .5 \$250

§ 5.28.2026

Reviewed and finalized Memorandum of Costs -Worksheet and Summary [NN] .3 \$625

§ 5.28.2026

Reviewed file, billables and costs [NN] .7 \$625

Plaintiff is entitled to include the time spent preparing the underlying motion in the ultimate fee award. (See McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703, citing Ketchum v. Moses

(2001) 24 Cal.4th 1122, 1133) ["The fees incurred in preparing a motion for fees are properly includable in the award."]) However, here, counsel has billed an excessive amount of time in preparing the documents to draft the instant motion, drafting the instant motion and in anticipating review of the opposition, drafting a reply, and hearing attendance for a routine motion. The Court has reviewed the pleadings and will reduce the time spent in connection with the instant motion by two hours at the rate of \$625 per hour for a total reduction of \$1,250.00.

The Court

ultimately finds Plaintiff is entitled to \$16,700.00 in attorney's fees, with a reduction of \$4,500.00.

C.

Costs

The Court finds that Plaintiff's counsel's request for costs in the amount of \$1,404.62 is reasonable. Plaintiff asserts that costs include standard litigation expenses such as filing fees, jury fees, and service of process. (Nita Decl., Exhs. B-C.) These are typical and routinely approved in lemon law actions under Civil Code §1794(d).

Accordingly, the motion is

GRANTED in part. Plaintiff is entitled to recover \$16,700.00 in attorney's fees and \$1,404.62 in costs.